

Merchant in Meny receives serious criticism for disclosing information about criminal matters

Date: 05-09-2023

Decision

Private companies

Serious criticism

Complaint

Processing basis

Criminal matters

TV surveillance

The Data Protection Agency has expressed serious criticism in a case where a merchant in Meny verbally disclosed information about criminal matters without legal basis.

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Summary

The Data Protection Agency has made a decision in a case where a complainant complained that a merchant in Meny had disclosed personal data about the complainant – including information about criminal matters – to the complainant's then-manager without legal basis.

The Data Protection Agency found grounds to express serious criticism that the merchant in Meny verbally disclosed information about criminal matters to the complainant's former manager. The information concerned the complainant being dismissed from the relevant Meny store due to a case of enrichment crime. This occurred based on a review of video recordings in the store.

The Data Protection Agency found that the description of the criminal matter that led to the complainant's dismissal was not necessary to safeguard the company's legitimate interest, and therefore the disclosure of this information could not occur under the legal basis of the Data Protection Act § 8, subsection 4.

Decision

The Data Protection Agency hereby returns to the case where [X] on March 6, 2023, on behalf of the complainant, complained to the agency that the merchant in Meny [Y], owned and operated by Dagrofa ApS (hereinafter "Dagrofa"), had disclosed personal data – including information about criminal matters – about the complainant to the complainant's then-manager at Lagkagehuset. Based on the information now available in the case – including Dagrofa's hearing response of April 14, 2023 – it is the Data Protection Agency's assessment that the case does not concern a security breach as reported to the agency on February 20, 2023 (journal number 2023-441-14849), as the case concerns the disclosure of information about criminal matters, which must be assessed under the Data Protection Act[1] § 8.

1. Decision

After reviewing the case, the Data Protection Agency finds grounds to express serious criticism that Dagrofa's processing of personal data has not occurred in accordance with the rules in the Data Protection Act § 8, subsection 4, cf. subsection 3.

Below follows a detailed review of the case and a justification for the Data Protection Agency's decision.

2. Case presentation

It appears from the case that the complainant was dismissed from their workplace, Lagkagehuset, located in Meny [Y]'s store premises on January 21, 2023.

[X] submitted a complaint with attachments to the Data Protection Agency on behalf of the complainant on March 6, 2023.

Dagrofa provided a statement in the case on April 14, 2023.

2.1. Complainant's remarks

The complainant has generally stated that the merchant in Meny [Y] has, in violation of the TV surveillance law, disclosed information from the store's TV surveillance to the store manager at Lagkagehuset, where the complainant was employed at the time. As a result, the complainant was

dismissed from their workplace on January 21, 2023.

2.2. Dagrofa's remarks

Dagrofa has stated that Meny [Y] is owned and operated by Dagrofa, and therefore Dagrofa is the data controller for the processing of personal data in the case.

Dagrofa has generally stated regarding the factual circumstances of the case that the merchant in Meny [Y] informed the store manager at Lagkagehuset that the complainant had been dismissed from Meny [Y]'s premises due to a case of enrichment crime. The reason for this was that the complainant was employed at Lagkagehuset at the time, and the merchant wanted to inform the store manager that the complainant could no longer use Meny [Y]'s entrance area. No recordings from the video surveillance in Meny [Y] have been shared with third parties, but only verbal information has been provided, based on a review of the relevant video recordings.

Dagrofa subsequently informed the merchant that he should have instead informed the complainant about the dismissal, after which the complainant could have informed their store manager about the situation.

3. Justification for the Data Protection Agency's decision

The Data Protection Agency, based on the information in the case, assumes that the merchant in Meny [Y] did not share the relevant video recordings with the store manager at Lagkagehuset.

The Data Protection Agency further assumes that the merchant verbally informed the store manager at Lagkagehuset that the complainant had been dismissed from Meny [Y]'s premises due to a case of enrichment crime based on a review of the video recordings in the store.

Section 4c of the TV surveillance law[2] regulates the disclosure of image and sound recordings containing personal data recorded in connection with TV surveillance.

The case must therefore be assessed under the rules of the Data Protection Act and not the TV surveillance law, as it concerns verbal disclosure based on the relevant video recordings in the store, and not a disclosure of the actual video recordings.

The preparatory works for the Data Protection Act[3] § 8 state that a broad understanding of the concept of "criminal matters" should be applied. Not only...

information about violations of legislation, without triggering or potentially triggering actual criminal liability, but possibly other sanctions, such as deprivation of rights, is assumed to be covered by the concept. Furthermore, it is also stated that not every piece of information about a possible criminal matter, including any report to the police, can be considered as covered. It is required that the report to the police must be assumed to be substantiated in some form before there is talk of information about criminal matters.

It is the Data Protection Authority's assessment that Dagrofa has disclosed information about criminal matters covered by the provisions of the Data Protection Act § 8 regarding complaints to third parties.

In this context, the Data Protection Authority has emphasized that the merchant has disclosed specific information that the complainant has committed property crime against the store, and that the information for the recipient must be considered substantiated, especially since, according to Dagrofa, it was based on a review of video recordings in the store.

The Data Protection Authority finds that the description of the criminal matter that was the reason for the complainant's dismissal was not necessary to safeguard the company's legitimate interest, and therefore the disclosure of this information could not be made under the authority of the Data Protection Act § 8, subsection 4.

In this regard, the Data Protection Authority has emphasized that the disclosure of information that the complainant had committed property crime was not necessary for Dagrofa to safeguard its legitimate interest, and that the information to the store manager at Lagkagehuset should have been limited to information solely that the complainant had been dismissed from the premises of Meny [Y] and as a result could not gain access to the store.

[1] Law No. 502 of May 23, 2018, on supplementary provisions to the regulation on the protection of

natural persons in connection with the processing of personal data and on the free exchange of such information (Data Protection Act).

[2] Consolidated Act No. 182 of February 24, 2023.

[3] Bill for Law No. 502 of May 23, 2018, LFS No. 68, the special remarks to § 8.